

January 24, 2019 12:00AM EST | Report

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Libya: Displaced Population Can't Go Home

Despite Pact, Deliberate Damage, Security Concerns Prevent Return to Tawergha



(Beirut) – Most of the 48,000 former residents of the [Libyan](#) town of Tawergha, forcibly displaced for seven years, have not been able to return home, Human Rights Watch said today after visiting the town.

Despite [reconciliation agreements](#) that should have paved the way for Tawerghans' return, the [massive and deliberate destruction](#) of the town and its infrastructure, and a pervasive feeling of insecurity, have kept all but a few families from returning. New satellite imagery analysis shows that between 2013 and 2017, when militias from the nearby city of Misrata effectively controlled Tawergha, over 20 kilometers of the city's underground electric cable network was most likely removed and apparently stolen.

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Watch. “The Government of National Accord should urgently devise a strategy for Tawerghans’ safe return, ensuring reconstruction and security, and accountability for militia members and commanders responsible for deliberate displacement and destruction.”

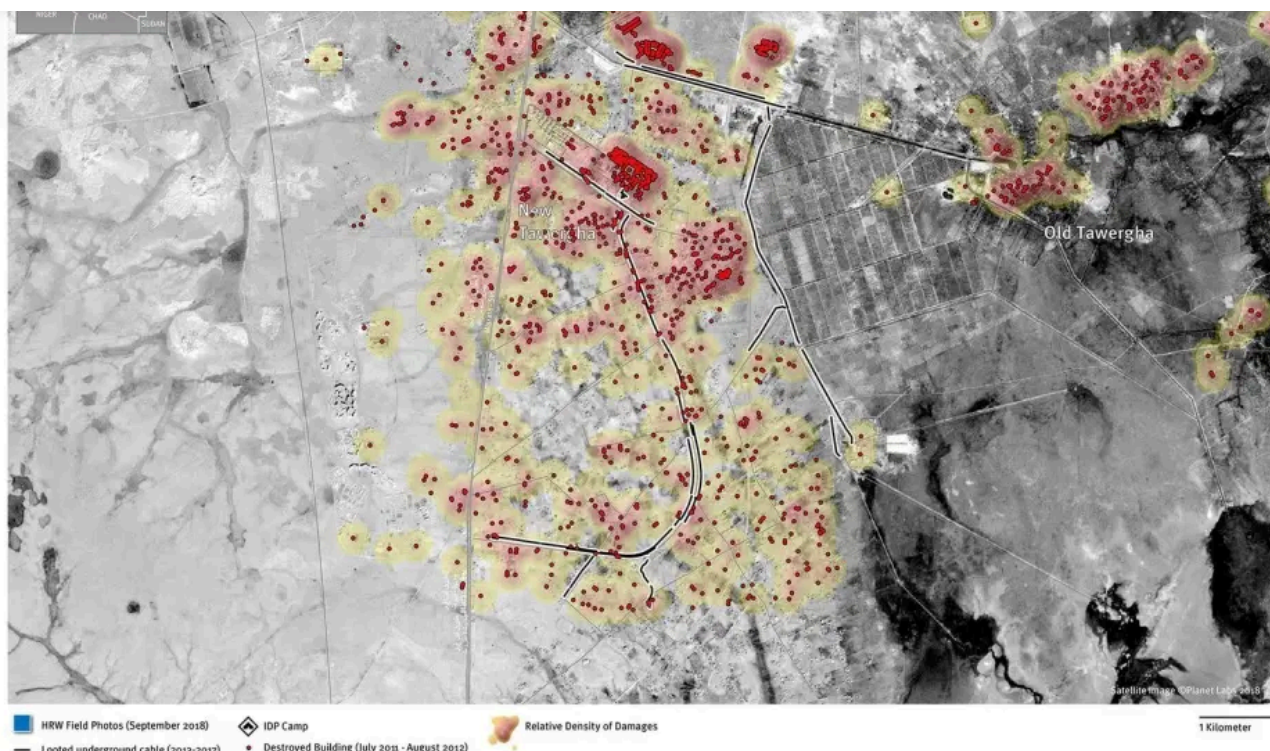
The International Criminal Court (ICC) prosecutor should consider possible war crimes and crimes against humanity against the Tawergha community as part of her office’s ongoing investigative efforts to address ongoing grave abuses in Libya, Human Rights Watch said.

An estimated [48,000 Tawerghans have been dispersed](#) around the country since the uprising that ousted Muammar Gaddafi in 2011. In August of that year, the [entire civilian population](#) fled approaching anti-Gaddafi armed groups, predominantly from Misrata, fearing attacks and reprisals.

In what amounts to [collective punishment](#) and forced displacement, a possible [crime against humanity](#), armed Misrata groups and civilian authorities subsequently blocked and threatened Tawerghans who tried to return home, accusing them of siding with Gaddafi and of committing atrocities against those seeking his overthrow. People from Tawergha were unable to visit, let alone return, to their homes until the signing of the peace charter in 2018.

Representatives of the two cities signed a reconciliation charter in June that in principle provided for the Tawerghans’ return. But as of December, only about 100 families have attempted to resettle in their hometown, according to the [International Organization for Migration](#).

Returnees face a devastated infrastructure, with no electricity, running water, or telecommunications, and scant education and health services. Some said they still feared attacks and retaliation by Misrata militias.

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Human Rights Watch visited the Libyan town of Tawergha, where only a handful of the 48,000 former residents forcibly displaced for seven years have returned to their homes.

Human Rights Watch visited Tawergha in September and met with the Local Council, the main body representing and coordinating relief for the city, nongovernmental organizations, the commander in charge of security from the predominantly Misrata-staffed Central Military Region – a unit nominally aligned with the Government of National Accord's (GNA) Defense Ministry, and eight Tawerghan families who had returned. Human Rights Watch also visited Misrata and met with municipal officials who negotiated the return process and are overseeing the implementation of peace agreements on Misrata's behalf.

Human Rights Watch also interviewed by telephone in December five families from Tawergha living in Tripoli, Benghazi, and Ajdabiya, who have decided against returning, citing the destruction and security concerns. Names of those interviewed, other than officials, have been changed to protect them from possible reprisals.

Tawergha Local Council members told Human Rights Watch that all power stations, water purification plants, water distribution tanks, and underground electric cables had been looted or

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damage, much of it apparently from arson, as well as looting.

Local Council members said that all of the town's private houses and shops had also been looted and damaged. When researchers drove through the town, and in nearby agricultural areas close to the river, every structure they saw or stopped at appeared to have some structural damage, including some caused by fire.

Three council members said that when displaced Tawerghans [first attempted to return](#) to the town in 2013, armed groups from Misrata looted and destroyed the town further to prevent their return. Historic satellite imagery assessed by Human Rights Watch also shows continuing deliberate destruction of electricity infrastructure after April 2013.

Armed groups from Misrata and civilian authorities in that city have exercised effective control, without interruption, over Tawergha since August 2011. The armed groups were largely affiliated with the Misrata Military Council, which coordinated military activities of armed groups from Misrata in the aftermath of the 2011 revolution.

Armed groups from Misrata, given their effective control of the city since 2011 either destroyed and looted the town themselves, or allowed others to do so, Human Rights Watch said.

Under international human rights and humanitarian law, the GNA, as the recognized and competent government authority, is required to facilitate the voluntary, safe and dignified return of displaced people to their homes and help them recover their homes, property and possessions, Human Rights Watch said. The Libyan authorities are required to investigate and prosecute all those responsible for international crimes, including war crimes and crimes against humanity, including commanders who knew or should have known about the crimes committed by their subordinates and failed to take all reasonable steps to prevent the crimes.

During the visit, Human Rights Watch observed that, despite the [GNA's commitment](#), reconstruction and recovery have yet to start in earnest. As of December 2018, the state electricity company had installed only one electricity cable, for street lights, on part of the main road. One NGO was retrieving unexploded remnants, and international organizations had provided limited food and non-food parcels, residents said. The head of the Local Council of Tawergha, Abderrahman al-Shakshak told researchers during a meeting in Tawergha on September 24 that despite pledges by authorities, the initial phase of clearing debris and assessing damage was moving slowly.

All Tawerghan residents interviewed by telephone said the scale of destruction had prevented their return. Some expressed anxiety about being in a city that remained under the watch and effective control of Misrata militias. Four of the five displaced Tawerghans interviewed also said they

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Acts aimed at preventing the return of the civilian population to their homes in safety and dignity, including physically blocking people from going back and deliberate destruction and looting, are unlawful, Human Rights Watch said.

The ICC prosecutor has a mandate to investigate crimes against humanity, war crimes, and genocide committed in Libya since February 15, 2011. Rampant militia violations since then have largely gone unpunished at the domestic or international level. That includes violations against Tawerghans, such as mass long-term arbitrary detention, torture and other ill-treatment, forced displacement, and unlawful killings. The ICC prosecutor should probe ongoing grave crimes by all sides, including possible serious crimes against Tawerghans, including deliberate acts preventing their return.

“While nothing can reverse seven years of forced displacement and dispersal, a measure of accountability for causing and preventing their return will not only bring justice to victims of serious violations and restore dignity, but it could serve as a deterrent for future crimes,” Salah said.

Timeline

Since August 2011, anti-Gaddafi fighters and later other militias, mostly from Misrata, arbitrarily detained, tortured, disappeared, and harassed people from Tawergha with impunity. According to the Tawergha Local Council, 170 people from Tawergha remain missing, the majority of them, they said, having been disappeared by anti-Gaddafi fighters during, or in the immediate aftermath of, the 2011 revolution.

In June 2013 Tawergha residents who were dispersed around the country [attempted to return](#), but militia barred them. Authorities in the eastern city of Ajdabiya intercepted and turned back a convoy of Tawerghans trying to make the journey from Benghazi. The government at the time, religious leaders, local leaders, and the United Nations Support Mission in Libya (UNSMIL) all cautioned against a unilateral initiative by Tawerghans to return, citing security concerns.

The UN helped open a [reconciliation process](#) in 2016 between the people of Tawergha and Misrata aimed at ending the forced displacement and compensating victims. Representatives of both sides signed an agreement in August 2016. It provided for a fund by the UN-backed GNA to compensate victims and for lifting obstacles imposed by Misrata groups to the Tawerghans' return.

After months of wrangling, the two sides agreed in April 2017 to modify the agreement based on requests from Misrata. The [final compensation plan](#) appeared to favor victims from Misrata, who will receive a higher compensation, over victims from Tawergha and excluded compensation for anyone presumed to have been pro-Gaddafi fighters or sympathizers. The sole provision on justice says: “The Libyan State shall take all necessary legal action to prosecute those accused” of crimes.

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necessary requirements for a dignified life according to the terms of the agreement.”

Thousands of people from Tawergha decided to return on February 1, 2018, based on the agreement, but forces from Misrata [blocked thousands of people](#) from returning and threatened to use force against anyone else who tried, apparently because some members of these Misrata forces disagreed with the agreement’s terms. Hundreds of families were stranded in new makeshift tent-camps east of the city, most in Qararet al-Qatef, 35 kilometers to the east. Many ended up returning to where they had been temporarily living.

On June 3, representatives from Misrata and Tawergha signed a reconciliation charter that was met with substantial opposition from Tawerghan community leaders, elders and activists, to end the dispute and allow Tawerghans to return. Al-Shakshak said that the two sides signed the charter to overcome objections from some officials and armed groups in Misrata, who had been blocking the return of Tawerghans.

The charter, which Human Rights Watch reviewed, imposes conditions on the return of Tawerghans, some of which run counter to international human rights norms and international humanitarian law.

The charter threatens free-speech rights, saying that Tawerghans are to “cease media campaigns, statements and demonstrations that may fan the flames of strife [...]” The charter stipulates that “return shall be ensured for those who were regular residents of Tawergha prior to the 17 February Revolution, who recognize and pledge to abide by the provisions this Charter and the Agreement signed by both parties.” Forcing Tawerghans to abide by a charter as a condition for their return compromises their right as displaced people to return to their homes and violates their right to peacefully choose to express their views (or not) on the agreements.

Moreover, the preamble of the charter assigns responsibility for crimes in 2011, including “crimes against humanity,” only to Tawerghans, even though there is evidence linking Misrata fighters to atrocities. It also limits accountability for current and future crimes only to Libyan courts, violating the right to effective remedy and ignoring the ongoing jurisdiction of the International Criminal Court. The charter does not apply equally the right to truth and knowledge about what happened to missing people and appears to favor victims from Misrata over victims from Tawergha.

Controlled Demolition, Looting of Infrastructure

The extensive damage to Tawergha’s infrastructure encompasses the electricity grid, above-ground and underground power cables, power conveyers, water tanks, telecommunication installations, and water purification plants.

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time when the Misrata authorities and armed groups had full control over access to Tawergha, enforced through multiple checkpoints leading into the town. The looting likely involved the use of heavy machinery to extract the cables and would have required loading them onto trucks and passing through checkpoints if they were transported elsewhere.

This damage is distinct from damage captured by satellite images taken in 2011, which included damage inflicted by combat and probable NATO air strikes during fighting between pro- and anti-Gaddafi forces that ended in October 2011. According to a Human Rights Watch [damage assessment](#) from 2013, the first phase of controlled demolition, looting and arson by anti-Gaddafi fighters started after they captured the town, around August 15, 2011. The next phase of controlled building demolition, involving the use of explosives and arson, began on or after November 24, 2011, three months after the Tawerghans fled.

As of December 2018, the state-owned Electricity Company had laid out one over-ground power cable about three kilometers long to illuminate street lights along the main road. In addition, the UN had provided eight solar-powered street lights. Few residents who had returned had access to generators.

Al-Shakshak told Human Rights Watch that all the deep-water wells and drinking water networks needed rehabilitation due to years of neglect and damage during the demolition and arson attacks. Based on visits to three sites, interviews with Local Council members, and analysis of satellite imagery and video footage, Human Rights Watch determined that all four water distribution tanks in the town had been destroyed. The Local Council says they were deliberately demolished, and all eight water wells and the main water purification plant that supplied Misrata with drinking water had also been damaged and looted.

There is no cellphone, landline, or radio coverage in the entire town. Al-Shakshak said that one mobile network operator had installed a temporary cellphone coverage in a nearby gas station, but the signal did not reach the town.

Local Council members said that all of the approximately 7,000 housing units in Tawergha had been damaged to varying degrees since the 2011 conflict. Al-Shakshak said that the council had established a committee to survey the damage to private properties. Tawergha residents needed to submit their personal files to this committee, which forwarded the files to private architectural offices to survey the damage and estimate the cost of reconstruction. They said that 300 files had been submitted for assessment.

Access to Health Care, Education

Human Rights Watch visited the Tawergha General Hospital, the city's main healthcare facility, and

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The only healthcare post operating in Tawergha is an improvised clinic consisting of four shipping containers that were transferred to the town after the temporary camp for Tawerghans in Qararet al-Qatef was dismantled in June. The only attendant of the clinic, a staff nurse from the Tawergha General Hospital, said the improvised clinic lacked plumbing, running water, and electricity. He said it could only provide basic medication such as pain killers and could not treat chronic diseases, perform surgery, or deliver babies. He said that one doctor visited occasionally but that all serious cases had to be transferred to other cities.

All of Tawergha's 22 schools and its one college have been extensively damaged, according to the head of the Local Council. Researchers visited four schools that had been damaged by fire and found them without furniture, equipment, and student files. The GNA Education Ministry provided 10 containers for a temporary school. Al-Shakshak said the objective was to enroll up to 500 children. However, about 50 children are attending the school on an irregular basis and without receiving the official curriculum for all age groups, one Tawergha resident said.

Legal Framework and Accountability

The GNA-endorsed [reconciliation agreement](#) from August 2017 lays out agreed duties on the parties and the compensation packages to be paid by the GNA to victims or their families from both sides for people who were killed, detained or reported missing, for people who suffered disabilities, and for limited personal property losses. Members of the Local Council said that the follow up June 2018 reconciliation charter should be considered a "social contract" with no binding legal consequences for the parties. However, some of the provisions appear to be one of the reasons why people are reluctant to return to Tawergha.

The [Guiding Principles on Internal Displacement](#), based on [human rights and humanitarian law](#) provide that displacement should be limited in time and should not last "longer than required by the circumstances." International law further stipulates that civilians forcibly displaced from their homes during a conflict should be allowed to return home as soon as possible without conditions.

[Principle 21 of the Guiding Principles](#) states that the property and possessions of internally displaced people should be protected from "pillage, direct or indiscriminate attacks or other acts of violence," and should not be "destroyed or appropriated as a form of collective punishment." The article also states that "property and possessions left behind by internally displaced persons should be protected against destruction and arbitrary and illegal appropriation, occupation or use."

Certain abuses committed as part of a widespread or systematic attack on a civilian population, including torture, arbitrary detention, and forced displacement, may constitute crimes against humanity. The [UN International Commission of Inquiry on Libya](#) concluded in its March 2012 report that Misrata militias had committed crimes against humanity against Tawerghans and that the deliberate destruction of Tawergha "has been done to render it uninhabitable."

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Accounts by Tawerghans

Researchers interviewed eight residents in person in September in Tawergha and five former residents who had not returned by phone in December.

When Musa R., a father of 12, displaced in Tripoli since 2011, met with researchers in Tawergha in September, he said he was only visiting for the day and explained why could not stay:

My home here in Tawergha has been destroyed. The whole ceiling has been brought down. I cannot come back. Winter is approaching, and people here will have to leave again. There is no medical care for my elderly, sick mother and some of my daughters need to continue their university education.

Khalil L. and Ihsan A., a married couple with six children whom researchers met in Tawergha, decided to return to their hometown after seven years of displacement in Benghazi with some of their children, despite the hardships. Ihsan A. said:

We can only stay here if they soon open a school for our children and if teachers show up. Many displaced families are afraid to return to Tawergha because they fear attacks from Misrata [militias]. There is no electricity here and no water, and the destruction is total and systematic. I am worried for the children when it starts to get cold. Many people cannot come back. Those who made a living elsewhere won't come back.

Khalil L. said:

All electricity cables, both over ground and underground and cables in private homes were stolen after the arson of homes because of the copper, which has become very expensive. I believe it must have been a company that did that because all the large electricity transformers have been looted as well. The looting mostly occurred in 2013, after the first attempt by the Tawergha community to return to our hometown.

Citing harassment by militias from Misrata, Mustafa M., an outspoken Tawerghan critic of the reconciliation charter between Tawergha and Misrata, who had spent the last seven years displaced in Tripoli, told Human Rights Watch by phone that although he briefly visited Tawergha twice he was not able to return permanently due to safety concerns:

I went to Tawergha twice in September to visit my home, which has been destroyed. Both times, at the checkpoint at the entrance to Tawergha, I am clearly [seen as] an undesirable as I do not agree with the peace accord. My car was singled out and I was checked thoroughly

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Faraj H., 50, another displaced Tawergha resident who lives in a camp in Benghazi, and who visited Tawergha twice, described his experience at a checkpoint:

The Misrata side has weapons and I fear for my security. During my visit, I was stopped at a checkpoint in el-Ain area by Katibat al-Zerzah, which is part of the Misrata army. They took my car papers and I had to follow them to al-Krareem where I waited for two hours before they gave back my documents.

Ahmed B., 51, a father of seven who has been living in a camp in Benghazi since his family's displacement in 2011, said he had visited his destroyed home in Tawergha only twice since June, and could not return to live there:

We are not displaced. We are in fact homeless, we can no longer be considered just displaced. We've been like this for eight years now. Most of the people in Tawergha feel that they've been [implicated](#) in a shameful peace charter. There are no schools or universities, yet all my children study. Tawergha is in a state of utter devastation. The entire city has been destroyed. There is no infrastructure, no water, no electricity, the conditions are very harsh. It's a burned land now.

Ali S., 47, a father of five, and displaced with his family in Ajdabiya since 2011, said he rejected the reconciliation charter and had concerns about returning to Tawergha:

I do want to return but I refuse to return like this. I'm absolutely dissatisfied with the charter. It's a weak and shameful agreement. Misrata cannot decide for the people of Tawergha and cannot be in charge of protecting us. My house is unlivable, and it's awfully burned. It was also looted, and they even pulled out the electricity wires [...] They also stole the doors and windows. Even on a security level, things are not very comforting. We were enemies and they hurt us very much.

Mustafa Karwad, the mayor of Misrata, told Human Rights Watch during a meeting in Misrata on September 23 that people from Tawergha had the right to unconditional return to their hometown since the signing of the reconciliation charter on June 3 and said there had been no security incidents involving Tawergha residents during that period.